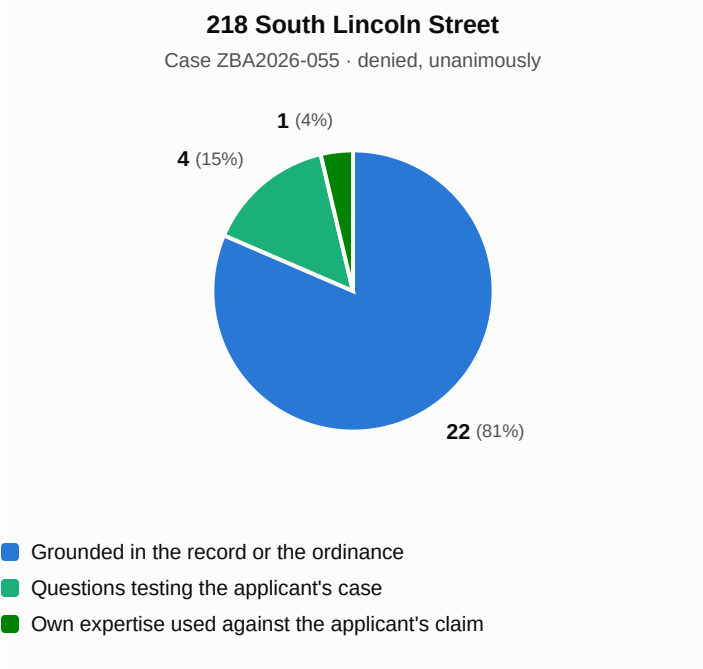
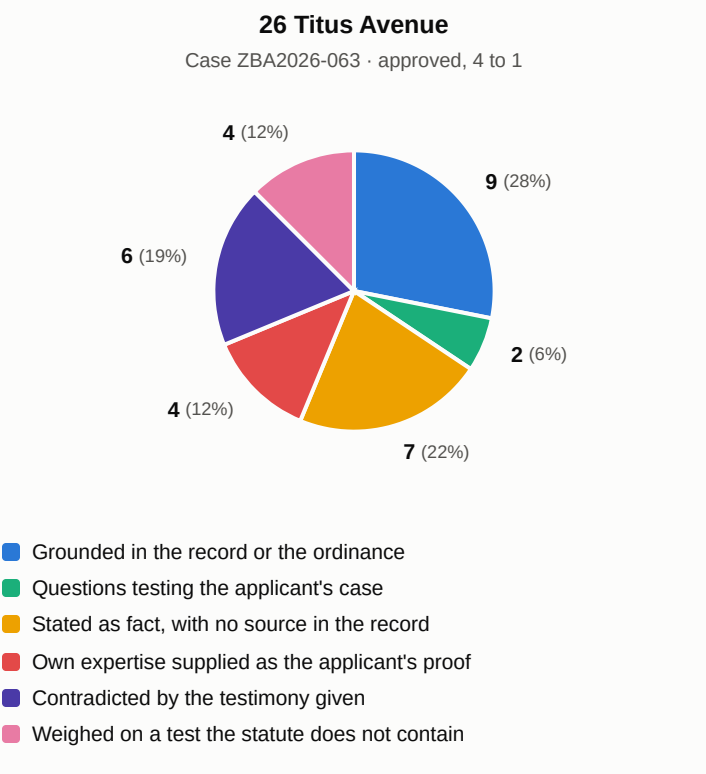


Vice Chair St. Pierre's statements, measured against the record

Manchester Zoning Board of Adjustment, public hearing of September 10, 2026. Both cases heard the same evening, South Lincoln Street first.



- One section of the Land Use Code
- 4.3-A.1.C Multifamily Dwelling — convert an existing two-family to a three-family
 - One dwelling unit added, inside an existing compliant building
 - No new building, no new footprint, no new floor area
 - Lot area 15,366 sq ft where 10,000 is required — 154% of the requirement



- Six sections of the Land Use Code
- 4.3-A.1.C Multifamily Dwellings — a use the R-1B district does not permit
 - 8.1.2 Planned Development Lot Area
 - 5.3.1.E Townhouse Building Type — districts permitted
 - 5.3.1.E.5.B Maximum height in stories — 3 where 2.5 is allowed
 - 5.3.1.E.5.C Maximum height in feet — 38 ft where 35 ft is allowed
 - 8.7.2.F.2 Parking location for planned developments
 - Thirteen dwelling units in two new buildings, 19,500 sq ft of new floor area
 - Lot area 49,484 sq ft where 78,000 is required — 63% of the requirement

CATEGORY	S. LINCOLN	TITUS AVE
Grounded in the record or the ordinance	22	9
Questions testing the applicant's case	4	2
Own expertise used against the applicant's claim	1	0
Own expertise supplied as the applicant's proof	0	4
Stated as fact, with no source in the record	0	7
Contradicted by the testimony given	0	6
Weighed on a test the statute does not contain	0	4
Statements classified	27	32

Each substantive statement is classified once, by hand, against the application file, the testimony given, and the Land Use Code — one entry per distinct assertion, question, or finding. Excluded are procedural remarks and the closing recitation he uses in nearly every case (public interest, spirit, no one benefits more from a denial, values not diminished, hardship “for the applicant”), which he gave that same evening at Delia Drive, Hanover Street, Thornton Street, Gold Street and Vinton Street: it is a habit of the Board’s practice, not something done to this applicant. A figure derivable from the City’s own review sheet counts as grounded even where no witness spoke it aloud. Every statement counted is listed with its timestamp in the appendices, so the totals can be audited line by line. Source: the City’s recording of September 10, 2026, machine-transcribed, deliberations transcribed twice; attributions rest on first names used on the recording and should be confirmed against the video.

The two cases side by side

Both heard the evening of September 10, 2026, both seeking relief from the same ordinance section §4.3-A.1.C. South Lincoln Street was heard first.

	218 SOUTH LINCOLN STREET	26 TITUS AVENUE
Use sought in the district	Two-family permitted by right; third unit sought	Only single-family detached permitted; multifamily sought
Building type	Existing building, compliant	Townhouse, not permitted in the district
Height	2 stories where 2.5 allowed	3 stories and 38 ft where 2.5 and 35 ft allowed
Lot area against requirement	15,366 sq ft where 10,000 required — 154%	49,484 sq ft where 78,000 required — 63%
Broker's opinion in evidence	Yes, a named broker	None
Case law cited in the application	Two decisions, applied to facts	None
Outcome	Denied, unanimously	Approved, 4 to 1

Figures from the City's Zoning Review sheets for each case and from the applications as submitted. South Lincoln: existing floor area 2,963 sq ft and footprint 1,823 sq ft, unchanged by the proposal, which adds one exterior door. Titus Avenue: footprint 5,760 plus 3,600 sq ft, total floor area 19,500 sq ft. Lot area percentages compare buildable lot area to the area the ordinance requires for the use proposed.

The same measure, applied to every case he can be shown to have spoken in

Six of the thirteen cases heard September 10, 2026. In the other seven the transcript gives no anchor for who stated the findings, so nothing in them is counted.

What share of his statements is grounded in the record

Ordered by that share. Each bar is one case, scaled to its own total, so the comparison is of composition and not of how much he talked.

- Grounded in the record or the ordinance
- Questions testing the applicant's case
- Own expertise used against the applicant's claim
- Own expertise supplied as the applicant's proof
- Stated as fact, with no source in the record
- Contradicted by the testimony given
- Weighed on a test the statute does not contain

CASE	COMPOSITION OF HIS STATEMENTS	N	IN RECORD
58 Myrtle Street 2026-077 · denied	9 1 1	11	82%
218 South Lincoln St 2026-055 · denied, unanimously	22 4	27	81%
374 Thornton Street 2026-080 · granted	4 1 1	6	67%
248 Vinton Street 2026-083 · granted, unanimously	4 1 1	6	67%
801 Hanover Street 2026-076 · granted, unanimously	5 2 1 3	11	45%
26 Titus Avenue 2026-063 · approved, 4 to 1	9 2 4 7 6 4	32	28%

Titus Avenue is the outlier on every measure the chart carries. It has the lowest share grounded in the record, by a margin of seventeen points over the next lowest. It is the only case in which he offered his own expertise as the applicant's proof, and the only one in which any finding is contradicted by testimony given in that same hearing. He denied at Myrtle Street and at South Lincoln Street and granted at Hanover, Thornton and Vinton, so the pattern does not track the outcome he favoured. Attribution and method are set out in analysis/attribution.py and in the appendix that follows; the categories, the counting rule and the exclusions are identical in all six cases.

Appendix — every statement counted, 26 Titus Avenue

Case ZBA2026-063. 32 statements. Timestamps are from the City's recording of September 10, 2026.

TIME	STATEMENT	CLASSIFIED AS
1:20:06	"in the redesign, you folks no longer need relief from dumpster location, townhouse parking drive, landscape or fence height?"	 Question
1:20:45	"thank you for your work in preserving the buffers"	 In the record
1:20:47	"your work to give the neighbors the 25 feet"	 Contradicted
1:20:50	"those will be left with the vegetation that's there undisturbed more or less" — confirming	 Question
1:55:45	"one of the perennial things that we see in almost all of these cases is the trees and the cutting down"	 In the record
1:55:55	"as the applicant had beat me to — when folks are doing a single family, they can cut all those trees down"	 In the record
1:56:02	"some of the primary concerns that we hear over and over are addressed by the enforced buffer in a plan development such as this"	 No source
1:56:07	"I do think this property has some very unique characteristics"	 No source
1:56:10	"18% of it has slope that's undevelopable by ordinance"	 In the record
1:56:13	"by removing curb cuts into Calef, I think we improve safety tremendously"	 No source
1:56:20	"if they're allowed to do ... those five houses, is that more in benefit of safety? Is it more benefit of the neighbors, of the spirit?"	 Wrong test
1:56:31	"I think this area is a transitional area in that neighborhood"	 Wrong test
1:56:38	"MX1, R1, any of the densities, they're not solely that. There are pieces that are exceptions"	 In the record
1:56:48	"We see a large multi-dwelling unit here ... the school, an entire side of it is cemetery"	 In the record
1:57:00	"the added buffers proposed here do create a reasonable buffer of landscape to the other properties"	 No source
1:57:04	"I don't think we've ever seen in my years on zoning another instance of properties that organically have such a large buffer"	 Expertise — as proof
1:57:18	"I do believe this is the best plan for this lot"	 Wrong test
1:57:22	"It is singularly unique in its size at 1.1 acre"	 Contradicted
1:57:28	"the buffers create a lot of alleviation to the problems we have"	 No source
1:57:31	"a lot of the other problems are addressed in the plan review process"	 In the record
1:57:48	Findings: "It's a tremendously unique lot at 1.1 acres"	 Contradicted
1:57:52	Findings: "a lot of slopes including 18% that is undevelopable based on the city's calculation of the slope review"	 In the record
1:57:58	Findings: "the quieting of title on the paper street creates additional buffers ... whether through the applicant or the other neighbours' efforts"	 Contradicted
1:58:08	Findings: "there are additional buffers then beyond what the plan development requires in itself"	 No source
1:58:15	Findings: "it reduces the need for curb cuts on Calef Road"	 In the record
1:58:18	Findings: "and preserves existing on street parking"	 Contradicted
1:58:26	Findings: the entrance is "off of Titus Avenue, which is in general safer to turn on to than the busier Calef"	 No source
1:58:54	Findings: "several other mixed or high density uses including the large development to the south, the cemetery and the Zion School"	 Contradicted
1:59:02	Findings: "Also, I am a real estate broker"	 Expertise — as proof
1:59:07	Findings: "I'm not aware of any circumstance where a development of this nature in Manchester has diminished a property around it. I've never seen a report or evidence of that"	 Expertise — as proof
1:59:16	Findings: "In general, reasonably well thought out development increases values"	 Expertise — as proof
1:59:18	Findings: "a tremendous amount of thought has been put into this, further evidenced by the applicant taking an additional month to rework and reduce counts"	 Wrong test

Appendix — every statement counted, 218 South Lincoln Street

Case ZBA2026-055, heard immediately before Titus Avenue the same evening. 27 statements.

TIME	STATEMENT	CLASSIFIED AS
0:33:51	"The three panels, though, it's house unit one and unit two, correct? So you need four at a third unit?"	 Question
0:36:24	"So that's not owner-occupied as you're presenting?"	 Question
0:36:30	"Anything can or will be, but that's not what it is"	 In the record
0:36:38	"what was the reason that it was allowed to degrade to its current state?"	 Question
1:00:04	"The inability to subdivide's not a hardship, it's absurd"	 In the record
1:00:13	"we have to remember that this was submitted under the old zoning ... this neighborhood was R2"	 In the record
1:00:20	"the specific spirit of that ordinance was a mix of single and duplexes"	 In the record
1:00:26	"when we look at the applicant's own exhibit, they've submitted that there's 41 singles, five two families, and one three"	 In the record
1:00:35	"this is clearly out of the spirit of the ordinance by definition"	 In the record
1:00:38	"it's also not in keeping with the character of this neighborhood"	 In the record
1:00:46	"I just don't see how creating the extra unit here is meeting the spirit of that or creating substantial justice to the neighbors"	 In the record
1:00:59	"there's no evidence that this was ever intended to be a third"	 In the record
1:01:06	"a house panel's gonna be needed to operate the one boiler system with the multi-zone, so that's not gonna fly with me either"	 Expertise — against
1:01:15	"just the fact that they overbuilt this house, which has been stated that the applicant had their own hand in, that's not a hardship"	 In the record
1:01:21	"if it is to be considered it's self-created"	 In the record
1:01:24	"there's no evidence here in my mind that the spirit's observed or any substantial justice is done, let alone a hardship"	 In the record
1:01:41	"it's existed as a two family for well over 50 years ... that kinda mutes that point in my book"	 In the record
1:01:55	"you say you've vacated apartment number two. What's going on in apartment number one?"	 Question
1:02:57	Findings: "I recognize that there are some points that the applicant has made that are factual"	 In the record
1:03:06	Findings: "This property is one of the largest lots in this neighborhood"	 In the record
1:03:10	Findings: "these are large units. We have a unit that's 1,800 square feet"	 In the record
1:03:15	Findings: "the applicant had a hand in building this and chose to create these large units"	 In the record
1:03:24	Findings: "The neighborhood ... as presented at this application is an R2 zone"	 In the record
1:03:27	Findings: "the spirit of that is a mix of single families and duplexes"	 In the record
1:03:34	Findings: "By the counts of the applicant's own submission, there are 41 single families, five two families, and one three family ... omitting the subject property"	 In the record
1:03:48	Findings: "this is not in the spirit of the ordinance and substantial justice is not done by creating the density of a three family in this district"	 In the record
1:04:18	Findings: "I tend to agree that a three family may not diminish the values of the property around it. So ... I don't believe that the property values will be diminished"	 In the record

The contrast is the point of the first page. At South Lincoln Street the Vice Chair worked from the applicant's own exhibit, the district's stated intent, and the evidence in the file, and used his outside knowledge once — to reject a claim the applicant had made. An hour later, at Titus Avenue, he supplied the applicant the property-value opinion its engineer had told the Board it did not obtain.